

9:00 AM

Line 8

25-CLJ-05131 CITIBANK, N.A. VS. LUKE HEMINGWAY

CITIBANK, N.A.
LUKE HEMINGWAY

JOAN WAGNER
PRO SE

Defendant's Motion to Vacate Default and Default Judgment

TENTATIVE RULING:

The unopposed Motion of Defendant Luke Hemingway ("Defendant") to Vacate Default and Default Judgment is GRANTED pursuant to Code of Civil Procedure section 473, subdivision (d).

NOTE: Defendant's Notice of Motion contains an incorrect address for Department 20. Department 20 is now located at 1050 Mission Road, Courtroom L, South San Francisco, CA, 94080.

On motion after notice to the other party, the court may set aside any void judgment or order. (Code Civ. Proc., § 473, subd. (d).) A court may set aside a default judgment valid on its face, but void, as a matter of law, due to improper service. (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371, citing *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) A default judgment is void against a defendant who was not served with a summons in the manner prescribed by statute. (*Id.*, at p. 371.) No time limit exists to bring a motion to vacate default judgment as void for lack of proper service. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207.)

Defendant contends that he was not properly served with the Summons and Complaint and therefore the default and default judgment entered against him are void. The proof of service of the summons and Complaint provides that a registered process server served Defendant by personal service on July 12, 2025, describing Defendant as "a blonde-haired white male contact 25-35 years of age, 5'10" - 6'0" tall and weighing 120-140 lbs." (Defendant's Decl., Exh. B.) The filing of a proof of service by a registered process server creates a rebuttable presumption that service was proper. (*Chinese Theater, LLC v. Starline Tours USA, Inc.* (2025) 115 Cal.App.5th 1048, 1059, citing Evid. Code, § 647 ["The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return."].) This rebuttable presumption affecting the burden of producing evidence is merely a preliminary assumption in the absence of contrary evidence. (*Id.* at p. 1059.) The process server's return may be impeached by contradictory evidence. (*Ibid.*) Defendant rebuts this presumption by providing evidence to support that the process server's description does not match his physical description. (Defendant's Decl., and Exh. A.) Plaintiff has not opposed this Motion, and therefore Defendant's evidence is undisputed.

Accordingly, the default entered on November 5, 2025 and default judgment entered on December 4, 2025 against Defendant are VACATED. Defendant is to file and serve his Answer by June 26, 2026.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court by Minute Order. The Court will prepare the Order after hearing.

9:00 AM

Line 9/UD Line 2

25-UDL-01765 CAROL MALCOLM TRUSTEE OF THE CAROL MALCOLM REVOCABLE
TRUST VS. MUKTA DHANUKA, ET AL

CAROL MALCOLM TRUSTEE OF THE CAROL
MALCOLM REVOCABLE TRUST
MUKTA DHANUKA

TODD ROTHBARD

PRO SE

Defendant's Demurrer to Complaint

TENTATIVE RULING:

This is defendant Mukta Dhanuka's demurrer to Plaintiff's complaint. Plaintiff has filed written opposition. After review of all of the relevant pleadings, the Demurrer is **OVERRULED**.

Legal Standards for Demurrer

California Code of Civil Procedure section 430.30 provides that an objection to a complaint may be made via demurrer when the ground for that objection appears on the face of the complaint, or via judicial notice. (Code Civ. Proc. § 430.30, subd. (a).)

Code of Civil Procedure Section 430.10 sets forth eight possible grounds for demurrer. A demurrer founded on its subdivision (e), which arises when an allegation essential to a cause of action is missing, is called a "general demurrer." (*McKenney v. Purepac Pharm. Co.* (2008) 167 Cal.App.4th 72, 77.) Accordingly, "[a] ruling on a general demurrer is thus a method of deciding the merits of a cause of action on *assumed facts* without a trial." (*Ibid.* (internal quotations omitted) (emphasis added).) Since a general demurrer "admits the truth of all material factual allegations in the complaint," a plaintiff's ability to prove these allegations "does not concern the reviewing court. The plaintiff need only plead facts showing that they may be entitled to some relief." (*Fisher v. San Pedro Peninsula Hosp.* (1989) 214 Cal.App.3d 590, 604 (internal quotations omitted) (superseded by statute on other grounds).) However, a court reviewing a demurrer does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.) Moreover, when a plaintiff "has stated a cause of action *under any possible legal theory*," it is error to sustain a demurrer. (*Bush v. California Conservation Corps* (1982) 136 Cal.App.3d 194, 200 (emphasis added).)

Defendant only raises Section 430.10(e) as a basis for this demurrer, by essentially attempting to make three distinct arguments, which will be addressed in turn.

1. Defendant claims the Tenant Protection Act ("TPA") requires a "second 3-day notice for curable breaches." Demurrer, pg. 4, line 11. Subsequently, Defendant claims Plaintiff failed to alleged compliance with the TPA. Demurrer, pg. 5, lines 6-7. There is no legal authority for these bare propositions, and Plaintiff correctly points out that "default in payment of rent" is Just Cause and there is no "second notice" requirement. Opposition, pg. 2, lines 2-5. Nor is there any requirement of alleging compliance with the TPA generally. Defendant's arguments fail.

2. Defendant claims the 3-Day Notice is improper because it does not state when the notice period started or ended. Demurrer, pg. 5, lines 9-18. Defendant therein concedes the 3-Day Notice as attached to the Complaint, and the Court sees it is indeed attached as Exhibit B to the Complaint. Defendant's assertion is false. The 3-Day Notice has a specific box entitled "Important – Calculating your Deadline to Comply" and has a stated service date of "12/10/2025." The Court finds that this 3-day Notice, is clearly distinguishable from the notice in *Eshagian v. Cepeda* (2025) 112 Cal.App.5th 433. Defendant's argument fails.

As such, the demurrer is OVERRULED. Defendant is to file its Answer to the Complaint within ten (10) calendar days after this hearing, i.e filed by June 22, 2026.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court by Minute Order. The Court will prepare the Order after hearing.

9:00 AM

Line 10/UD Line 3

26-UDL-00129 MEGAN BERRY SWADELL VS. UN HUI OONEE, MD

MEGAN BERRY SWADELL
UN HUI OONEE

PHILLIP B. ROSE
PRO SE

Defendant's Motion for Relief to Vacate Entry of Default Judgment Pursuant to Code of Civil Procedure § 418.10 (c)(d) and § 473

TENTATIVE RULING:

For reasons explained below, Defendant's motion to set aside default is DENIED.

Plaintiff's request for sanctions is summarily DENIED (a Motion for Sanctions under Code of Civil Procedure ("CCP") Section 128.5 shall be made separately from other motions ore requests) CCP § 128.5(f)(1)(A).

On April 17, 2026, a hearing was held on Defendant's motion to quash service of summons. At the hearing, the Court adopted the tentative ruling denying the motion. In the ruling, the Court ordered that "Defendant is to file and serve its responsive pleading within five court days, i.e. by 12:00 p.m. on April 24, 2026." (Minute Order, April 17, 2026.) Notably, Defendant confirmed she had received the tentative ruling but failed to timely notify Plaintiff's counsel she was contesting, and thus no argument was held on that day. Nevertheless, Defendant was thus on actual notice that the ruling and Order on April 17, 2026, was that she only had five court days, i.e. by 12:00 p.m. on April 24, 2026 to file and serve her responsive pleading.

Subsequently, the order denying the motion quash was entered on April 21, 2026, and the Court served notice to the parties on that same day. (*See* Affidavit of Service of Order Denying Motion to Quash, filed April 21, 2026.)

On April 23, the day before the court-imposed deadline to file a responsive pleading, Defendant filed a document providing notice that she *intended* to file a writ of mandate challenging the Court's ruling on the motion to quash. (*See* Defendant's Notice of Petition for Writ and Request for Additional Time to File Petition Writ of Mandate, filed April 23, 2026, at p. 3 ["Defendant respectfully requests that the Court . . . [a]ccept this notice of intent to file a petition for writ of mandate."].) This filing is mis-captioned, confusing and clearly in error. It could not be a notice of a writ actually having been filed, and also a request seeking additional time to file the very same writ. In any event, the substance of the filing contained zero notice of an actual writ filing. Instead, Defendant sought an extension of time to file a writ petition, which was promptly denied on April 27, 2026. Regardless, in the absence of any actual writ petition being filed and stay from an appellate court, nor any stay by this trial court, the above deadline remained in full effect, i.e. "Defendant is to file and serve its responsive pleading within five court days, i.e. by 12:00 p.m. on April 24, 2026." (Minute Order, April 17, 2026.)

Generally, after a motion to quash service of process has been denied,

the defendant, within 10 days after service upon him or her of a written notice of entry of an order of the court denying his or her motion . . . and before pleading, may petition an appropriate reviewing court for a writ of mandate to require the trial court to enter its order quashing the service of summons or staying or dismissing the action. The defendant shall file or enter his or her responsive pleading in the trial court within the time prescribed by subdivision (b) unless, on or before the last day of the defendant's time to plead, he or she serves upon the adverse party and files with the trial court a notice that he or she has petitioned for a writ of mandate. The service and filing of the notice shall extend the defendant's time to plead until 10 days after service upon him or her of a written notice of the final judgment in the mandate proceeding.

CCP § 418.10 subd. (c).

However, Defendant fails to provide any authority that Section 418.10(c) which would apply generally to all civil cases, has the same timeframe in an unlawful detainer context which has a much shorter deadline to respond to a summons. Nor is there any authority provided that the Court could not order a specific deadline to file a responsive pleading. Finally, as discussed below, the record does not reflect that Defendant did timely file an actual writ of mandate, and thus Section 418.10(c) is not even applicable.

Section 418.10 also then provides:

- (d) No default may be entered against the defendant before expiration of his or her time to plead.
 - (e) A defendant or cross-defendant may make a motion under this section and simultaneously answer, demur or move to strike the complaint or cross-complaint.
- Id.*, subd. (d) & (e).

Defendant argues without authority, that by filing the notice of *intent* to file a writ of mandate, her deadline to file a responsive pleading was extended to 10 days after the final judgment in the writ proceeding. However, Section 418.10(c) plainly requires that the writ of mandate must indeed be filed and that notice of the filing be filed with the Court, and none of that timely occurred. Defendant's notice of intent essentially had no legal effect. Indeed, the only thing in the Court Registry on the actual filing of any writ, is the Court of Appeals Order filed on May 8, 2026 reflecting a one sentence ruling: "The request for stay and petition for writ of mandate are denied." *Id.*

Defendant argues that she never received notice of the order denying the motion to quash. However, the Court mailed notice to the parties on April 21, 2026. (*See* Affidavit of Service of Order Denying Motion to Quash, filed April 21, 2026.) More importantly, as noted above, Defendant appeared at the actual hearing, she had received the tentative, desired to contest it though not in a timely fashion, and therefore Defendant was on actual notice of the specific deadline to file and serve a responsive pleading, to wit: "by 12:00 p.m. on April 24, 2026." (Minute Order, April 17, 2026.)

Default was then entered against Plaintiff even later on April 28, 2026, thus Defendant had several days past the Court imposed deadline to have filed a responsive pleading. Notably, this is eleven days after the hearing on April 17, 2026 (where Defendant had actual notice of her deadline to plead), is past the Court imposed deadline of April 24, 2026 to plead, and is also past the ten day period referred to in CCP Section 418.10 to the extent it even applies and had it not been shortened by the Court.

Defendant has also conceded that possession is now moot, as she has already vacated the premises. (Oppo., at p. 12; Nam Decl., ¶¶ 22, 23.) On a practical level, this means the unlawful detainer Judgment for possession can no longer be enforced, i.e. Plaintiff already has regained possession.

Notably, Defendant admits being aware of this unlawful detainer action as early as February 2, 2026. Nam. Decl. ¶ 3. Defendant admits that she “actively litigated this matter from the outset.” Mtn. MPA, pg. 3, line 7. Defendant then brought three consecutive motions to quash, the first was denied procedurally, the second granted, and the third was denied as noted above. *See*, Minute Orders of February 27, 2026, March 6, 2026 and April 17, 2026.

Defendant, though self-represented, has acknowledged in this case and before this Court, that she is a licensed California attorney. Plaintiff identifies her as such, under State Bar No. 321543. Opposition, pg. 2, line 6. Thus, Defendant is presumed to know that at any time when filing any one of her three consecutive motions to quash, she could have easily “simultaneously answer, demur or move to strike the complaint” (CCP Section 418.10(e)) which would have prevented the taking of the very default she now challenges. Especially prudent, when Defendant admits that “from the earliest stages of the litigation, Plaintiff repeatedly threatened and attempted to obtain default despite Defendant’s active participation.” Mtn. MPA, pg. 3, lines 10-11.

Finally, though Defendant also sought general relief under CCP Section 473, Defendant’s Memorandum of Points and Authorities does not even substantively argue the merits under Section 473. Defendant’s Reply Brief does make some argument for this as an alternative. Reply, pg. 5, lines 19 to pg. 6, line 2. Nevertheless, based on this record, Defendant fails to carry the burden to demonstrate any excusable neglect for such relief.

Accordingly, Defendant’s motion to set aside default is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
